

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, JULY 16, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**Michael McCalmon vs. Northbay Healthcare Corporation
Case No. CU24-03200**

Dismissal Hearing

TENTATIVE RULING:

The dismissal hearing is continued to July 30, 2026 at 9:00 a.m. Class action counsel to file a declaration from the settlement administrator confirming all funds have been distributed and cy pres recipient is in actual receipt of funds and has negotiated the check or received the electronic transfer.

**Wells Fargo Bank N.A. v. Morena Nicdao
Case No. CL24-03545**

Motion to Set Aside/Vacate Dismissal and Enter Judgment per 664.6

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation fails to state an appearance. The court has

no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

CAPITAL ONE N.A. v JOHN N. BARRETT, JR.
Case No. CL25-03751

Motion to Set Aside/Vacate Dismissal and Enter Judgment Pursuant to 664.6

TENTATIVE RULING:

Plaintiff's unopposed motion to set aside dismissal of the action and enter judgment pursuant to a stipulation between the parties is GRANTED.

Defendant JOHN N. BARRETT JR.'s first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. He performed by paying a total of \$303.19 pursuant to the stipulation and then defaulted.

Plaintiff caused the motion to set aside the dismissal and to enforce the stipulation to be personally served on Defendant on May 26, 2026.

The court finds that Defendant had notice of these proceedings to enforce the settlement and authorizes entry of judgment in the amount of \$3,978.00 and awards costs in the sum of \$358.61 for a total judgment of \$4336.61.

The lodged proposed judgment will be processed forthwith.

JPMORGAN CHASE BANK N. A. v JESUS VIVEROS
Case No. CL25-09768

Motion to Set Aside/Vacate Dismissal and Enter Judgment Pursuant to 664.6

TENTATIVE RULING:

Parties to appear. Defendant contends he made payments toward the stipulated amount of \$13,170.78 but neither party identifies what sums have been previously paid.

Plaintiff's motion to set aside dismissal of the action and enter judgment pursuant to a stipulation between the parties is GRANTED.

Defendant JESUS VIVEROS's opposition acknowledges the stipulation for a payment plan towards an outstanding debt, but contends he was unable to meet the terms of the stipulation due to severe financial hardship.

While the court appreciates Defendant's circumstances prevented him from performing the terms of the stipulation as he previously agreed, they do not establish a basis on which the court can decline to enforce the stipulation by declining to enter judgment. However, any enforcement of a judgment will be subject to legal limitations which ensure that individuals are not garnished or levied in a manner that prevents them from providing for their individual daily needs.

WILLIAM BRONSON v. TRICORBRAUN, INC.
Case No. CU23-00588

Plaintiff's Motion to Compel Defendant's Further Responses to Form Interrogatories, Special Interrogatories, Requests for Production

TENTATIVE RULING

Plaintiff WILLIAM BRONSON moves to compel Defendant TRICORBRAUN, INC. to further respond to his form interrogatories, set one, special interrogatories, set one, and requests for production, set one. Plaintiff's complaint in this matter alleges that he worked for Defendant on a commission basis but Defendant has not paid him all commissions due under the parties' contract.

Meet and Confer Efforts. The court first considers the adequacy of the parties' efforts to meet and confer to work these issues out before resorting to a motion to compel further responses. Code of Civil Procedure section 2016.040 requires a declaration "showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion" to compel. Plaintiff's (current) counsel's attached declaration states that Plaintiff's (previous) counsel served the discovery requests at issue on July 25, 2024. (Declaration of Thomas C. Tagliarini in Support of Motion to Compel Further Responses ("Tagliarini Dec.") at ¶¶ 2-4.) At some point Defendant turned over to prior counsel a sample of requested records, from which Plaintiff cannot ascertain the information he needs. (*Id.* ¶¶ 6-9.) On October 11, 2025 Plaintiff's (current) counsel sent Defendant a letter asking for full and complete responses. (*Id.* at ¶ 11.) Defendant wrote back on October 31, 2025 promising a timely response (treating the October 11 letter as if it were the initial service of the discovery requests). (*Id.* at ¶ 12.) Defendant served responses on April 10, 2026, per a schedule stipulated to by the parties following an earlier motion to compel responses, but these responses consisted only of objections. (*Id.* at ¶¶ 18-19.) Plaintiff called Defendant about this on April 13, 2026. (*Id.* at ¶ 21.) At some point Defendant produced records pertaining to three of its forty-nine customers but these records did not contain all information Plaintiff sought. (*Id.* at ¶ 22.) The instant motion was filed May 27, 2026.

The trial court has discretion in determining whether adequate meet and confer efforts preceded the filing of the motion. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424 [factors include complexity of discovery issues, history of counsel in prior disputes, judge's gut feeling; sending one brief letter 13 days prior to deadline to file motion was not sufficient attempt].)

The court finds Plaintiff made adequate efforts to meet and confer. Review of the record reveals the parties arrived at an impasse on the subject of the customer records. Detailed meet and confer efforts were not required in light of the objection-only nature of Defendant's responses to interrogatories.

Analysis. Form interrogatories are specifically approved by the Judicial Council to seek foundational information about every case. They are generally not objectionable. Defendant's boilerplate objections to form interrogatories are improper. Defendant must further respond to all form interrogatories.

Defendant's boilerplate objections to the special interrogatories are also improper. Defendant offers no argument as to how Plaintiff's special interrogatories, requesting information related to the calculation of Plaintiff's commissions, are not reasonably calculated to lead to the discovery of admissible evidence. Defendant must further respond to all special interrogatories.

Defendant's sample of three customer records out of forty-nine is an insufficient response to Plaintiff's requests for production. Plaintiff alleges that Defendant did not properly pay him for the whole of his commission work for Defendant. Discovery of all customer records for customers to whom Plaintiff made sales while working for Defendant is therefore relevant and reasonably calculated to lead to the discovery of admissible evidence. Defendant must further respond to the requests for production. All requests for production are subject to a protective order in that they may only be used by the parties, subject to a protective order to protect the confidentiality of Defendant's proprietary business information. The court adopts the proposed protective order disseminated by Los Angeles County Superior Court in the absence of an alternative proposal by the parties.

The court has previously suggested that if there is truly an undue burden from accessing multiple databases that the database be downloaded and provided to a third party expert witness who can analyze the data subject to a protective order. However, given that Defendant had an obligation to pay Plaintiff based upon an analysis of the information being requested, it is hard to understand how Defendant would have arrived at that sum without conducting the analysis with the information it is now being asked to undertake.

Sanctions. Code of Civil Procedure sections 2030.300, subdivision (d) [interrogatories] and 2031.310, subdivision (h) [inspection demands] require sanctions against a party that unsuccessfully makes or opposes a motion to compel further responses to discovery requests, unless the court finds that the losing party acted with substantial

justification or that other circumstances weigh against the imposition of sanctions. Defendant shows no justification for the use of boilerplate objections in response to form interrogatories. The court therefore imposes \$2,250 in sanctions on defense counsel.

Conclusion. Plaintiff's motion is granted. Defendant must respond in full to Plaintiff's discovery requests within thirty days of the date of this order. Sanctions are imposed against Defendant's counsel Husch Blackwell LLP in the sum of \$2,250, due and payable within thirty days of the date of this order.

The court vacates the currently set mediation review hearing date and resets the mediation review hearing date on November 5, 2026 at 8:30. Updated CMC statements shall be filed 15 days prior.

CHARLES LITTLETON v. JOANNE ROY YOUNG, CU24-01401

Trial Management Conference

TENTATIVE RULING:

Trial counsel to personally appear.

Plaintiff filed a notice of conditional settlement. However, cross-complainant did not. The trial remains confirmed for July 30, 2026 at 9:00 a.m.

As of July 14, 2026 at 1:00 p.m., no trial management conference statements had been filed by either party. Parties to appear and show cause why they should not be sanctioned up to \$1,000 each for failure to comply with the trial management order.

**NO NAME GIVEN MOHIT MOHIT SIROHII v. AMERICAN HONDA MOTOR CO.
CU25-07798**

Trial Management Conference

TENTATIVE RULING:

Trial counsel to personally appear.

As of July 14, 2026 at 1:15 p.m, Plaintiff has failed to file a trial management conference statement as previously ordered. Plaintiff is ordered to appear and show cause why Plaintiff and Plaintiff's counsel should not be sanctioned up to \$1,000 for failure to file a trial management conference statement and/or precluded at trial from presenting witnesses or evidence.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002